

NEWSLETTER N. 508 of August 4, 2023

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****Instant Lottery of Receipts: Green Light from the Privacy Authority****

New mode of participation in the "Lottery of Receipts." The Privacy Authority has given the green light to the Customs and Monopolies Agency (ADM) regarding the inter-directorial provision scheme that introduces the "Instant Draw Lottery," allowing customers to participate directly in the competition through the use of a two-dimensional code printed on the receipt.

In granting approval, the Authority noted that this new mode of play, which complements the one already in use since 2020, ensures compliance with data protection regulations, allowing taxpayers to participate in the draws without providing their lottery code to the merchants. In particular, the scheme incorporates the indications provided by the Authority during discussions with ADM to ensure protections for minor users—who will not be able to participate in the Lottery—and those related to controls on electronic payment instruments, which must be directly attributable to the winner or a member of their household.

The Authority also deemed the technical and security measures for the protection of personal data outlined in the provision scheme and identified in the impact assessment to be adequate.

To participate with the new mode, the customer—after downloading the "Gioco Legale" app and authenticating via Spid or Cie—will be able to scan with their smartphone the code (QR and similar code) present on the receipt issued by the merchant following the electronic payment. After scanning, the app will associate the customer's lottery code with the purchase made. In the absence of the lottery code, the app will create a new one that will be linked to the purchase.

The code will include, among other data, the customer's lottery code (if presented at the time of making the electronic payment at the cash register), the details of the issued receipt (related to number, time, date, and amount of the expenditure made), and information about the merchant (related to VAT number, registration number of the electronic cash register, or cash register number). In the event of a win, the "Gioco Legale" app will instantly notify the customer with a notification and will send—upon completion of a questionnaire—a two-dimensional code through which the customer can collect the prize at one of the authorized establishments, within 30 days.

****Inclusion Income: Privacy Authority Approves the Information System****

Adequate measures requested to protect the data of beneficiaries

The Privacy Authority has expressed a favorable opinion on two draft decrees from the Ministry of Labor and Social Policies concerning the establishment and functioning of the Information System for Social and Labor Inclusion (SIISL) and Support for Training and Work (SFL).

The positive opinion was issued urgently, just a few days after the Ministry received the drafts. The drafts take into account the observations provided by the Authority's Office during informal discussions aimed at ensuring compliance of the processing with data protection regulations.

In fact, the SIISL and SFL process, on a large scale, personal data related to health, social condition, and economic and financial situation, also processed based on the assessment of the beneficiaries' needs (including vulnerable subjects, including minors).

Since the processing of such a significant amount of data poses risks to the rights of millions of beneficiaries, the Authority has requested the introduction of a series of measures in the drafts to protect the individuals concerned. The measures particularly pertain to the clarification of the roles assumed by the various parties involved in the processing, the precise identification of the types of data processed and their origin, the operations performed, the parties to whom they may be communicated, and the categories of subjects authorized to access, as well as the retention periods of the information and the identification of technical and organizational measures to be adopted concerning the procedures for electronic authentication, in compliance with sector regulations and the principles of lawfulness, fairness, and transparency, data minimization, and integrity and

confidentiality.

****Whistleblowing: Guarantees for Employees Reporting to Anac****

Approval from the Guarantor for the Guidelines of the Anti-Corruption Authority

In addition to the possibility of reporting potential wrongdoing within their own administration or company ("whistleblowing") with specific guarantees of confidentiality, there is now the option to send a report directly to the Anti-Corruption Authority. This is one of the innovations introduced by the recent reform of the whistleblowing regulations, which are referenced in the Guidelines of Anac regarding the submission and management of so-called "external" reports, on which the Guarantor has expressed a favorable opinion.

The text incorporates the indications provided by the Authority during discussions with Anac to ensure compliance with the protection of personal data of the individuals involved in the entire reporting management process, with particular regard to the confidentiality of the whistleblower's identity and the content of the report itself, including through the use of encryption.

The "external" report can be made in cases of absence or ineffectiveness of the internal reporting channels of public or private entities where the worker is employed, or in cases of fear of retaliation or risks to the public interest.

Violations can be reported to Anac digitally, through a specific online platform, or through traditional channels (e.g., telephone service, in-person meeting) and must concern specific unlawful acts or those believed to potentially be committed based on concrete elements.

The Guidelines also contain useful clarifications on the main aspects of the new regulatory framework and provide indications and principles that employers can consider when activating their internal reporting channels.

In continuity with the Guarantor's guidelines on the matter, Anac's Guidelines also clarify the scope of reportable conduct and reiterate the necessity to ensure— in the case of reports via the online platform— the non-traceability of the whistleblower to avoid undermining the confidentiality protections provided by law, while tracking, for the protection of the security of processing, the operations carried out by authorized personnel managing the reports.

****Health: The Guarantor Sanctions a Local Health Authority for the Dissemination of a Patient's Health Data****

Emergency Room Report Published on a Billboard

A patient learns from a chat that their name was identifiable on a billboard for the emergency room depicting a healthcare worker at a computer. This occurred to a patient of a Local Health Authority (ASL) who, after the "discovery," filed a complaint with the privacy Guarantor to protect their rights.

The Authority, which had also received a notification of a data breach from the ASL as the data controller due to the dissemination of the patient's data, confirmed that the billboard indeed depicted a healthcare worker sitting in front of a computer screen on which an emergency room report with the patient's personal data associated with the healthcare service received was visible. Moreover, the billboard was positioned in the main entrance corridor of the emergency room, thus allowing anyone to become aware of this information.

In response to the Guarantor's request for explanations, the health authority stated that the publication of the data was due to mere oversight and that the billboard had been displayed for only a few weeks. The Authority, recalling that the dissemination of any information from which the state of health can be inferred is prohibited, imposed a fine of 20,000 euros on the ASL for unlawful processing of personal data.

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